

HARTSTENE POINTE MAINTENANCE ASSOCIATION INDIAN COVE MARINA RULES & REGULATIONS HANDBOOK

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ABBREVIATIONS & DEFINITIONS

“BOD” or “Board” means the Board of Directors of the Hartstene Pointe Maintenance Association.

“CC&Rs” means the recorded Covenants, Conditions and Restrictions applicable to Hartstene Pointe.

“HPMA” or “Association” means the Hartstene Pointe Maintenance Association, a Washington nonprofit corporation and Lessor of Boat Slips.

“R&Rs” means the administrative and other rules and regulations of HPMA adopted by the BOD, including these Marina Rules, as they may be updated or amended from time to time.

“Marina Rules” are these rules and policies governing the use and rental of the Marina. These Marina Rules are part of the HPMA Rules and Regulations.

“Moorage Committee” means the Association committee established to administer the Marina consistent with these Marina Rules, the governing documents of HPMA and decisions of the BOD.

“Lot Owner” means an Owner or contract purchaser of a Lot in Hartstene Pointe.

“Member” means a member of HPMA by virtue of owning a Lot in Hartstene Pointe.

“Boat Slip” or “Slip” means a designated space in the Marina, along a dock and over water, for tying up and storage of a boat; the Marina includes Guest Moorage Slips and Permanent Moorage Slips.

“Bow In (or Stern-In)” means a vessel that is moored in a Boat Slip with the bow pointing to the main dock. An adjacent vessel or finger pier runs parallel to each side of the moored vessel.

“Side Tie” means a vessel is moored alongside a main pier with no vessel or finger pier on the water side of the vessel usually adjacent to a fairway. The marina recognizes two types of side ties:

- A. Open-End Side Tie. The slip has open water on one or more ends (either bow and/or stern).
- B. Closed-End side Tie. The slip has another slip located on both ends (bow and stern)/

“Fairway” is a waterway between docks and/or shore that allows vessels to transit to and from Slips and in and out of the Marina.

“Indian Cove Marina” or “Marina” means the HPMA common area and facilities generally depicted in the photograph on the cover of these Marina Rules, that consists of all the Boat Slips, the gangways, walkways, docks, and piers connecting all the Slips to the docks and all parts of the dock system to the shore, as well as adjacent or enclosed water areas.

“Aquatic Lands Lease” (No. 20-C12127) means the lease of the aquatic lands known as Indian Cove, Pickering Passage, which are tidelands and bedlands, located in Mason County, Washington and are leased to HPMA from the State of Washington, Department of Natural Resources.

“Permanent Moorage Slip” is a Marina Boat Slip designated by the BOD for lease to Lot Owners on a long-term basis consistent with the length of the Aquatics Land Lease minus one day. The Slips and dock areas of Permanent Moorage Slips are referred to as Long-Term Moorage areas. A lease of a Permanent Moorage Slip is called a Long-Term Lease.

“Guest Moorage Slip” or **“Transient Moorage Slip”** means a short-term Marina Boat Slip designated as guest moorage by HPMA and located along approximately 260’ of linear dock. Guest Moorage Slips are allocated pursuant to HPMA procedures, for a per diem fee, as further set out in these Marina Rules or fee schedule in the R&Rs. The Slips and dock areas of Guest Moorage Slips are generally known as “Transient Moorage” areas.

“Sublease” means a written contract (titled “Hartstene Pointe – Indian Cove Marina Sublet Mooring Lease Agreement”, or similar) between the lessee of a Permanent Moorage Slip (a “Long-Term Lessee”) and another Lot Owner or Registered Occupant, that transfers the right to use the Lot Owner’s Permanent Moorage Slip for a limited period of time according to the terms set out in the sublease form.

“Registered Occupant” is a tenant, guest or family member of a Lot Owner who resides at the Lot Owner’s Lot and to whom the Owner has delegated their right and easement of enjoyment to all or specific Lease-Use areas.

“Notice of Violation” means a written notice describing a violation of these Marina Rules. Marina Rules will be enforced by way of the Marina-specific policies and procedures set out herein, and also under the Association’s Enforcement Policy.

*Additional defined terms may be designated throughout this document.

ARTICLE I GENERAL MARINA INFORMATION

Section 1: Preamble.

The Association wants to provide a safe and enjoyable atmosphere at Indian Cove Marina. To ensure safety and the smooth operation of our environmentally friendly Marina, all users of the Marina are expected to observe and comply with the Marina Rules contained in this handbook.

Authority: These Marina Rules were developed by the Moorage Committee and approved by the Board of Directors of the Association in accordance with Washington’s HOA Act (RCW 64.38), the Association’s Declaration, its Articles and Bylaws. These Marina Rules may be revised or amended as set forth in our Bylaws.

Application of Marina Rules: The Marina is a unique feature of the Association that requires specific rules and procedures. These Marina Rules are intended to supplement the Declaration, Bylaws and other Rules and Regulations of the Association by being specific to the Marina. To the extent these Marina Rules conflict with the general Rules and Regulations, then with regard to Marina-related matters these Marina Rules shall control. If the Marina Rules conflict with the Declaration or Bylaws, the Declaration or Bylaw provision will control. In addition to the governing documents listed above, the

Agreement and Declaration Applicable to Indian Cove Marina was initiated to specifically guide policy and management of the Marina.

Enforcement procedures for the marina rules are as defined in the HPMA Rules & Regulations except owners or registered occupants shall have 15 days to correct a marina violation in lieu of 30 days as defined in the HPMA R&R's, Article II, Enforcement Protocol and Hearing Procedures.

Section 2: History and Marina as an Exclusive Use Amenity.

Quadrant, the original developer of Hartstene Pointe, built Indian Cove Marina consisting of a total of Twenty (20) Boat Slips as a Common Area Facility back in the 1970's. The original marina was insufficient to fulfill the demand for dock space serving a community of 532 Lots, as many Owners desired to make use of the marina facilities. There were several attempts by way of surveys to create a special assessment to provide funding to build a larger marina. These efforts failed. However, the demand for more dock space remained.

On September 5, 1981, the Board of Directors of HPMA approved "Resolution #9-3" which outlined a plan to build a new larger marina at a cost of \$400,000.00 from funds borrowed from individual Lot owners. All Lot Owners were given the opportunity to participate. A minimum of Ninety-Three (93) Lot Owners were required to commit to the financing of the marina before construction could commence. Ninety-Seven (97) Lot Owners did commit prior to construction and before construction was completed all One Hundred Four (104) boat slips designated as Long-Term Leases were financed by Lot Owners. In exchange for financing the larger marina, these Lot Owners were provided long-term leases for a specific boat slip at the new larger marina. In addition to the 104 Boat Slips assigned to a Long-Term Leases, Two Hundred Sixty (260) feet of dock was set aside as transient moorage which represented approximately the same dock space as the original marina built by Quadrant.

"Resolution #9-3" recognized Owners who had opted to contribute to facility funding and authorized such owners to enter Long Term Leases with the right to assign their Lease to any other Hartstene Pointe Lot Owner.

The One Hundred Four (104) Long Term Leases began on May 1, 1982 with a term of Twenty-Five (25) years. In 1995 the Marina required additional funds for dredging. The entire dredging cost was paid by the Long-Term Lease holders and for providing the funds the Long-Term Leases were extended an additional ten (10) years.

In 2014, an "Agreement and Declaration Applicable to Indian Cove Marina" was made and entered into by the Association for the purpose of defining uses and costs for maintaining the Marina, a common area facility owned by the Association on aquatic lands leased from the Washington State Department of Natural Resources (DNR). This declaration superseded and replaced any contrary provisions set forth in Resolution #9-3 and subsequent administrative documents.

Concurrently with the "Agreement and Declaration Applicable to Indian Cove Marina" all long-term moorage leases were updated and replaced with a new "Long Term Mooring Lease Agreement". The term of the new leases is for the same time and duration as the Aquatics Land Lease for the Marina with the Washington State Department of Resources. The lease agreement for a Permanent Moorage Slip is called a "Long-Term Moorage Lease." Those long-term leased Slips are referred to as Permanent

Moorage Slips in these Marina Rules. The lessee of a Permanent Moorage Slip under a Long-Term Lease is referred to as a “Long-Term Lessee.”

On February 23, 2018, the Association entered a contract to replace the aging Marina with a new one that will meet all current environmental, electrical and design requirements, and will not reduce the amount of dock space designated as Guest Moorage Slips. The new Marina was funded by a five-year Dock Replacement Fee entirely paid by the Owners with Permanent Moorage Slips.

In November 2021 Marine Floats began construction of the new marina which was completed in December. HPMA signed a new Aquatics Land Lease No. 20-C12127 with the State Department of Natural Resources with an expiration date of October 31, 2046. In December 2021 new Long Term Leases were issued to include some new provisions as required by the Aquatics Land Lease, including a term that is one day less than the Aquatics Lease.

The Marina is an exclusive use lease area funded by the moorage fees and assessments from the Long-Term Leases and Transient Moorage fees. Per HPMA Rule & Regulations, Article XII, Section 2, Lease-Use Areas are defined as “those common areas and facilities set aside for exclusive use subject to availability and the execution of a lease/rental agreement”.

In its current configuration, the Marina consists of 100 moorage slips with Long Term Lease Agreements totaling 2668 lineal feet. Available Transient Moorage (sometimes also referred to as Guest Moorage) totals 300 lineal feet.

Section 3: The “Agreement and Declaration Applicable to Indian Cove Marina.”

Each Lot Owner shall have a non-exclusive right and easement of enjoyment of the Indian Cove Marina which shall be appurtenant to, and shall pass with the title to the Owner’s lot, subject to the following:

Lot Owners’ Easement of Enjoyment.

A. The docks consisting of the gangway, constructed walkways and piers shall be open to all Lot Owners, except for the finger piers which are reserved for the exclusive use of Owners or registered occupants leasing or subleasing a Slip.

B. The Boat Slips (the water spaces including Permanent and Transient Moorage Slips) are leased for the exclusive use of the Owner leasing the Slip. Slips are available for lease to Owners subject to availability and the rules and procedures for the allocation and leasing of such Boat Slips.

C. HPMA may take any action specified in any underlying lease agreement or the Marina Rules, and may suspend the right of an Owner (their tenants, guests, or Sublessees) to use Indian Cove Marina for any period during which:

- any assessment or fees under a Slip lease or against their Lot remains unpaid, or
- any violation of the governing documents for which the owner is responsible remains unabated.

D. An Owner’s rights to use of the Marina shall terminate immediately upon sale of the Owner’s Lot within the Hartstene Pointe development or termination of Registered Occupant status.

Transfer of a Permanent Moorage Slip lease upon sale of a Lot shall be completed pursuant to the lease's terms.

Delegation of Use.

An Owner may delegate, in accordance with such rules and regulations as the Association may promulgate, their rights to use and enjoy the Marina to the members of their family, their tenants, and their contract purchasers in possession, PROVIDED that specific rules regarding delegation as defined in the Long Term Leases and Transient Moorage Reservation Forms, and any explicit restrictions or requirements regarding such delegation shall apply.

Lease Fees.

The Association has established leasing procedures and fees so that the entire cost of the Marina's operation and upkeep are borne by fees from the Long-Term Leases plus per diem fees collected for Guest Moorage Slips in the Transient Moorage areas. Costs paid for by these leasing fees include, but are not limited to, the cost of Marina repair and maintenance, insurance, DNR lease, office costs, any HPMA overhead attributed to the Marina, the Harbormaster's salary, and a reserve fund for replacement.

Section 4: Organization.

The Marina, its gangway, walkways, and piers is a common area amenity managed by HPMA. The tidelands and bedlands under the docks are controlled by an "Aquatic Lands Lease" from the State of Washington, Department of Natural Resources.

The Harbormaster shall have the authority and duties assigned by the General Manager in consultation with the Moorage Committee or Board. The Harbormaster directs the Marina's daily operations and is supported by HPMA staff and volunteers.

The Moorage Committee recommends rules and policies and advises the BOD on the annual and long-term financial planning for the Marina as defined by its Charter in the HPMA Bylaws. Moorage Committee meetings are open to all Owners and meeting schedules are posted on the HPMA website.

Lot Owners are encouraged to attend meetings and volunteer.

If you have any questions concerning the Marina or the Marina Rules, please contact the Harbormaster, the Business Office, or a member of the Moorage Committee (contact information can be found on the HPMA website www.hpma.org).

Section 5: Moorage Types.

Permanent Moorage Slips are leased to Owners for a fee under Long-Term leases. Long-Term Leases can be assigned or sold to other Owners, or subleased, according to these Marina Rules and the terms of the lease. Transient Moorage Slips are made available for use by Owners, their guests and family members (when the Owner is present), and Registered Occupants, for a per diem fee.

ARTICLE II

MOORAGE AND MARINA FAQs

are posted on the marina page of the hpma.org website

ARTICLE III MOORAGE LEASES

Section 1: Moorage Lease Types/Options.

No vessel may be moored in the Marina except pursuant to a Long-Term Lease or Sublease (for a Permanent Moorage Slip), or a Transient Guest Vessel Mooring Agreement for Guest or Transient Moorage Slip.

The Boat Slips (the water spaces including Permanent and Transient Moorage Slips) are leased for the exclusive use of the Lessee.

Section 2: Long Term Moorage Lease Agreements.

Lot Owners can lease a Slip on a long-term basis which can be assigned and/or sold to other Hartstene Pointe property owners. These Slips are called Permanent Moorage Slips, and the leases are called Long-Term Leases.

A. **Lot Owners Only.** Lease of individual slips in the Marina for vessel moorage shall be granted by HPMA in the form of "Hartstene Pointe - Indian Cove Marina Long Term Moorage Lease Agreements" (i.e., a Long-Term Lease) to Hartstene Pointe Lot Owners only.

B. **Exclusive Use.** The Boat Slip (the water space as defined in the Long-Term Lease) is leased for the exclusive use of the Lessee. All Lot Owners have the right to be assigned the exclusive use of a Boat Slip subject to availability and subject to the rules for the assignment of such Boat Slips.

C. **Term.** The term of a Long-Term Lease for a Permanent Moorage Slip shall be one day less than the length of the Aquatics Land Lease between HPMA and the DNR, or shorter by agreement of the parties.

D. **Termination of Long-Term Lease.** Conditions for termination of a Long-Term Lease:

1. A Long-Term Lease shall terminate when a Long-Term Lessee has sold and/or is no longer a Lot Owner. Lot Owner may assign lease to Buyer. On approval of assignment by HPMA a new lease will be provided to the assignee.
2. A Long-Term Lease shall be terminated when Long-Term Lessee assigns their Permanent Moorage Slip to another Lot Owner. On approval of assignment by HPMA a new lease will be provided to the assignee.
3. A Long-Term Lease may be terminated by HPMA when the Long-Term Lessee is in arrears on any Association charge or assessment over 180 days.
4. A Long-Term Lease may be terminated if the Long-Term Lessee is in violation status (violation of any of the conditions listed in the Long-Term Lease Agreement, violation of any Marina rule or policy, or failure to abide a directive issued by the Harbormaster) after notice and opportunity to be heard and, where required, failure to cure, or otherwise forfeits or sells their lease without prior written permission or without following required procedures.

5. A Long-Term Lessee shall be provided notice and opportunity to be heard if termination of lease is proposed. Such hearing may be combined with a hearing on any underlying violation that triggers a proposal for termination.

E. **Right to Assign.** Property Owners may assign their Long-Term Lease to another Lot Owner. When assigning a Permanent Moorage Slip and respective Long-Term Lease, both parties shall use and agree to the terms of the “Hartstene Pointe – Indian Cove Marina Long Term Lease Assignment Agreement” as supplied by HPMA. An assignment fee can be negotiated between the two Lot Owners independent and separate from HPMA.

F. **Acquire from HPMA.** Occasionally, a Long-Term Lease will expire, or the Permanent Moorage Slip will otherwise go unleased. In those cases, HPMA may utilize an auction, notice or waiting list to make the Permanent Moorage Slip available for lease to a new Owner, as may be determined at the discretion of the Board.

G. **Requirements Prior To and During Moorage of Vessel.**

1. Vessel of record shall be owned by Lessee.
2. Current HPMA Vessel of Record - Boat Registration Form on file at HPMA Office.
3. Current Copy of State or Federal Boat Registration on file at HPMA Office.
4. Current Certificate of Insurance with minimum \$300,000 liability naming HPMA as an additional insured from insurance carrier on file at HPMA Office.
5. Current Boat Registration properly applied to or displayed in vessel.
6. Lessee agrees to comply with the Rules and Regulations of HPMA Indian Cove Marina.

H. **Right to Sublease a Long-Term Lease.** A Long-Term Lessee may sublease their Permanent Moorage Slip to another Owner or Registered Occupant – refer to Sublet Moorage Lease Agreements.

Section 3: Sublet Moorage Lease Agreements.

Long-Term Lessees may sublease their assigned Permanent Moorage Slip to a “Sublessee” by using the Hartstene Pointe - Indian Cove Marina Sublet Mooring Lease Agreement provided by HPMA. All subleasing must be done through the HPMA office. No Sublease shall be recognized or valid unless it is in writing, using the appropriate Sublease form and signed by HPMA, the Long-Term Lessee and Sublessee.

A. **Property Owners and Registered Occupants Only.** A Long-Term Lessee may only sublet their moorage slip (Sublease) to other Lot Owners or Registered Occupants.

B. **Exclusive Use.** A Permanent Moorage Slip may only be subleased for the exclusive use of the Sub-Lessee, for the vessel of record, for the Permanent Moorage Slip identified in the Sublease agreement and only for the term identified in the Sublease.

C. **Term.** The term of a Sublease shall be as defined in the Sublease agreement but cannot be longer than 12 months in duration.

D. **Termination of Sublease; HPMA Not Responsible for Damages.** A Sublease may be terminated by HPMA for a violation of the Marina Rules and, where required, failure to timely cure; a violation of any of the conditions listed in the Sublease agreement, for violating any Marina rule, policy, or a directive issued by the Harbormaster, or in event the Long-Term Lessee is in arrears on any Association charge or assessment over 180 days, is in violation status of any Marina Rules, or in the event they forfeit, or assign/sell their Long-Term Lease. Sublessee shall hold HPMA harmless from any damages sustained by a Sublessee due to termination of a Sublease by the HPMA, whether the cause of the revocation is due to Sublessee's actions, or the actions of the Long-Term Lessee.

E. **Right to Assign.** A Sublessee cannot assign a Sublease.

F. **Payment of Moorage Fees.** A Long-Term Lessee shall remain responsible for timely payment of all moorage costs and fees for their Permanent Moorage Slip and charges under the Long-Term Lease, and the HPMA office will bill each Long-Term Lessee directly for such fees and costs. Unless otherwise provided in the Sublease, a Sublessee will be required to pay or reimburse the Long-Term Lessee directly for such amounts upon demand by the Long-Term Lessee or as otherwise agreed between them. The Association shall not be responsible for payment or reimbursement between the Long-Term Lessee and their Sublessee.

G. **Marina Rules.** All duties and conditions imposed on Lessee under these Marina Rules shall apply to Sublessee.

H. **Requirements Prior To and during Moorage of Vessel Under a Sublease.**

1. Vessel of record shall be owned by Sublessee.
2. A copy of the executed Sublease agreement signed by the Long-Term Lessee, the Sublessee and HPMA must be on file with the HPMA Office.
3. Long Term Lease fees must be timely paid. If they are late by more than 180 days, the primary Long-Term Lease and Sublease may be terminated by HPMA and the Permanent Moorage Slip will be subject to re-lease by HPMA.
4. Current HPMA Vessel of Record - Boat Registration Form on file at HPMA Office for Sublessee's vessel.
5. Current Copy of Sublessee's State or Federal Boat Registration on file at HPMA Office.
6. Current Certificate of Insurance for Sublessee with minimum \$300,000 liability naming HPMA as an additional insured from insurance carrier at HPMA Office.
7. Current Boat Registration properly applied to or displayed in vessel.
8. Sublessee agrees to comply with the Rules and Regulations of HPMA Indian Cove Marina.

Section 4: Guest Moorage.

The Marina has a designated area and Slips dedicated to guest moorage. The Guest Moorage Slips are in an area referred to as the Guest or Transient Moorage area. Use of Guest/Transient Moorage areas and Guest Moorage Slips are subject to the following rules.

The Transient Moorage areas are generally located on the north side of the dock that parallels the north breakwater. Additional Transient Moorage area with Guest Moorage Slips may be available in unoccupied Permanent Moorage Slips that Owners have released to the Harbormaster for temporary moorage.

A. **Guest Moorage.** Guest Moorage Slips are available for Owners without access to a Permanent Moorage Slip by way of a Long-Term Lease or Sublease, all owners guests and family members (when Owner is present), and Registered Occupants, for a per diem fee.

B. **Low Tides:** If the tide is too low to allow access to the marina along the entrance fairway, Long Term and Sublease Vessels of Record may temporarily use the guest moorage, subject to availability, until the tide rises and allows access to their assigned slip during daylight hours. There is no charge, providing the vessel is moved as soon as the tides rises to allows and allows access to their assigned slip.

C. **Availability.** The Guest Moorage Slips are available on a first come, first serve basis except for those areas that have been reserved in advance. Reserved Guest Moorage Slips are identified by pennant flags and are for the use of the party who made the reservation. **It is highly recommended to secure a reservation through the Harbormaster during busy boating seasons or holidays.**

D. **Reservations.** Only Lot Owners or their Registered Occupants may contact the Harbormaster to make reservations for Guest Moorage Slips. Please provide the dates needed, expected time of arrival, overall length and beam of the vessel, and the address of the Owner or Registered Occupant to be billed. Contact the Harbormaster for reservations at harbormaster@hpmma.org.

E. **Obtaining a Permit.** Every vessel tying up in the Transient Moorage areas or any Guest Moorage Slip (including transient use of a Permanent Moorage Slip) must display a permit on a dock-facing window or windshield of the vessel. The permit and required paperwork can be found next to the Harbormaster drop box located on the side of the lifejacket hut located by the pier entrance in the parking lot. Attach the yellow form to your boat in a visible location, the other form is deposited in the Harbormaster drop box. The permit is required immediately on arrival and docking of the vessel.

F. **Requirements for Guest Moorage**

1. Executed Transient Guest Vessel Mooring Agreement must be completed and deposited where directed at time of arrival.
2. Fees are daily and invoiced to the Property Owner or Registered Occupant.
3. Shall provide proof of Insurance with minimum \$300,000 liability for all vessels if requested by Harbormaster.
4. Current Boat or Vessel Registration on boat.
5. Compliant with Marina Rules and Regulations and Terms of the Transient Guest Vessel Mooring Lease

G. **Termination.** The Harbormaster or designee may terminate permission to moor in Guest Moorage at any time and without prior notice whenever the Harbormaster or designee determines that termination is in the best interest of the Marina.

H. **Relocation.** All vessels moored in the Guest Moorage areas (including any Permanent Moorage Slip made available temporarily for Guest Moorage) shall be subject to relocation at any time at

the sole discretion of the Harbormaster or his designee for safety, for efficient use of Guest Moorage or for any other reason without notice.

I. **Fees.** Guest moorage fees will be billed to and are the responsibility of the Lot Owner or Registered Occupant with whom the vessel or guest using the Slip is associated.

ARTICLE IV

ADDITIONAL PROVISIONS CONCERNING SLIP LEASING & MOORAGE

Section 1: Moorage Agreement Personal to Tenant.

A lease agreement and the rights and duties contained therein are personal to the tenant named in the lease agreement.

Section 2: Recreational Purposes Only.

Moorage Slips shall be used for recreational purposes only.

Section 3: Condition of Vessel/Seaworthiness.

Vessels moored in the Marina shall be seaworthy and capable of operating under their own power, except for a reasonable time necessary for repairs. If the HPMA or Harbormaster believes that a vessel is unseaworthy, Lessee shall provide evidence of seaworthiness from a licensed marine surveyor or boat mechanic, or as otherwise reasonably required by the Harbormaster or HPMA.

If the vessel has an emergency condition, the condition must be remedied as soon as possible. If more than minor repairs are required, the vessel shall not remain in Moorage. No extensive work on a vessel shall be allowed in the Marina. The determination of whether the work is "extensive" shall be at the sole discretion of the Harbormaster or their designee.

Section 4. Liveaboard.

Liveaboard means an individual or individuals that sleep aboard or otherwise use a vessel for residential purposes.

No person may liveaboard any vessel in the Marina on a permanent basis. For Long-Term Lessees and Sublessees of Permanent Moorage Slips, liveaboard is limited to a maximum 14 days concurrently and a maximum 30 days per year. For Guest Moorage Slips, liveaboard is limited to a maximum 14 days concurrently. Long-Term Lessees, Sublessees and Guests shall inform Harbormaster in advance of overnight stays.

A Long-Term Lessee may request additional liveaboard with the written permission of the Board of Directors during the period in which a permanent dwelling is constructed upon the Owner's Platted Residential Lot.

Section 5: Rafting.

Rafting is not allowed in any part of the Marina except for small vessels that can be moored in a slip and meet the requirements of Article IV, Section 10, *Multiple Vessels*.

Section 6: Appropriate Vessel Size.

The Long-Term Leases and Subleases define the maximum length and beam allowed in the moorage slip. In the event the maximums appear to be in violation, the Harbormaster shall determine whether a vessel is of an appropriate size for moorage. The decision of the Harbormaster will be final.

A. **Overall Length:** The expression "overall length" or "LOA" (length overall) means a measurement in a straight line parallel to the keel from the foremost part of the vessel to the after most part, including sheer, bowsprits, bow pulpits, rudders aft of the transom, outboard motors, dinghies, associated mounting hardware and any other object that contributes to the length of the vessel.

B. **Appropriate / Inappropriate Length:** A vessel is of an inappropriate length if its overall length exceeds the length of the Slip per the following:

1. **Bow-In Slips:** The overall length of the vessel cannot exceed the length of the Slip plus two feet into the fairway. No portion of the vessel, equipment or hardware can extend over or onto the dock.
2. **Open-End Side Tie:** The overall length of the vessel cannot exceed the length of the Slip as defined in the Long-Term Moorage Lease plus two feet. Extra length may be allocated by HPMA on the closed-end side to provide maneuvering space, primarily for the vessel utilizing the Closed-End Side Tie.
3. **Closed-End Side Tie:** The overall length of the vessel cannot exceed the length of the Slip as defined in the Long-Term Moorage Lease plus two feet. The overall length of the Closed-End Side Tie is longer on both ends than the designated vessel length to provide some maneuvering space. The extra length for maneuvering is determined and equitably allocated by HPMA based on available space and dock configuration.

C. **Appropriate / Inappropriate Width:** A vessel will be of an inappropriate width if the width of the vessel exceeds the beam width of the slip to which it is assigned. The beam is defined as the total width of the vessel, including equipment, ladders, hardware, dinghy's, etc. exclusive of boat fenders.

Section 7: Multiple Vessels.

Multiple vessels are allowed in one slip provided combined overall lengths and widths of the vessels do not exceed the width and length limitations of the Slip and do not infringe on maneuvering space.

Section 8: Right to Moorage upon Death of Lot Owner.

If a Lot Owner with a Long-Term Lease of a Permanent Moorage Slip dies, the Owner's estate may continue use of the Slip under the same terms as the Owner's Lease Agreement until decedent's Lot (and title to decedent's vessel, if applicable) is distributed by the estate. If a surviving spouse, sibling, child, or close relative of decedent takes title to the Lot, then that person may elect to keep the Permanent Moorage Slip by executing a "Hartstene Pointe – Indian Cove Marina Long Term Lease Assignment Agreement" and on acceptance by HPMA will receive a new Long-Term Lease. If decedent-Owner's spouse was also an Owner listed on the Long-Term Lease, then no action should be necessary except to notify the Association.

Section 9: Obtaining or Retaining Moorage through Deception.

Moorage is limited in the Marina. The Board and Moorage Committee's policy is to allocate Slips and use of the Marina as fairly as possible. There is an obligation of good faith and fair dealing imposed on all Owners and other users of the Marina.

The Association, acting through its Board, reserves the right to deny Marina access and moorage, terminate a Long-Term Lease, Sublease, or Guest Moorage, or refuse to extend or reinstate a Long-Term Lease, Sublease or Guest Moorage if it appears that the Owner, Sublessee, Registered Occupant, tenant, guest, or agent has engaged in deception to obtain or retain access to a Permanent Moorage Slip, Sublease or Guest Moorage Slip. Appeal of this decision shall be governed by HPMA Rules and Regulations, Article II, Enforcement Protocol and Hearing Procedures.

ARTICLE V VESSEL OF RECORD

The Vessel of Record is that vessel whose physical description and current State Registration Number or current USCG Documentation number are entered on the Indian Cove Marina – Vessel of Record - Boat Registration Form which must be current and filed at the HPMA Business Office.

A. No vessel shall be accepted by HPMA as Vessel of Record unless the vessel has a current State Registration Number or current USCG Documentation Number (as required by State law).

B. No vessel shall be accepted by the HPMA as Vessel of Record until the Harbormaster verifies that the vessel complies with the ownership, insurance, condition, and size requirements of these Rules.

C. The Long-Term Lessee or Sublessee must show proof of ownership of the vessel of record in accordance with the Long-Term Lease or Sublease Agreement.

Proof of vessel ownership may be established by:

1. A current Washington State Certificate of Title as provided in Chapter 88.02 RCW.
2. A valid Certificate of Title issued by another State, Province or Country.
3. A valid marine document as a Vessel of the United States, United States Coast Guard (USCG) Documentation, as described in RCW 88.02.550.
4. A valid Washington State Registration issued by the WA Department of Licensing.
5. A valid Registration Certificate issued by another State, Provincial or Country Department of Licensing.

D. Upon entry of the vessel's physical description and current State Registration number or current USCG Documentation number into the Indian Cove Marina - Vessel of Record - Boat Registration Form the vessel becomes the "Vessel of Record" for that slip. No vessel shall occupy any slip governed by a Lease or Sublease agreement other than the Vessel of Record without written agreement of the Harbormaster and Lessee or Sublessee.

E. If a Lessee changes the Vessel of Record, Lessee is required to update their information with HPMA and provide the required documentation for ownership, registration and insurance as required by the Lease agreement and/or Sublease agreement and these Rules.

F. The slip assigned to the Lessee must be occupied exclusively by the vessel of record, with the exception that a Lessee may sublease their assigned slip, subject to these Rules. The owner of a vessel occupying a slip in violation of this rule will be subject to a penalty per table of fines plus the appropriate guest moorage fee. If the penalties and fees assessed are not collectable from the owner of the vessel found in violation of this rule, the Lessee will be responsible for such penalties and fees.

G. Dinghies are considered an attachment to the Vessel of Record and do not require registration

ARTICLE VI REQUIRED INSURANCE FOR MOORING

HPMA and the Aquatics Land Lease require all vessels to provide proof of marine insurance that provides coverage at liability limits of at least three hundred thousand dollars (\$300,000) per occurrence and includes, at a minimum, general liability, legal liability, and pollution liability coverage. To the extent not already included in the general, legal, and pollution liability coverage of a vessel owner, HPMA and the State shall also require the vessel owner to provide proof of coverage for fuel spills, hull damage, wreck removal, salvage, and injuries to passengers and crew of the vessel as outlined in RCW 88.26.030.

Long Term Lessees and Sublessees shall provide HPMA with documentation that such insurance is in force at all times vessel is moored in slip. Proof of insurance coverage shall be provided to the HPMA office before vessel is moored. Proof is defined as the insurance carrier shall provide to HPMA a certificate of insurance, naming HPMA, as an “additional insured” or “additional certificate holder”. The insurance carrier by naming HPMA is responsible for notifying HPMA with changes and/or cancellations of insurance.

No vessel may moor in Guest Moorage without having in full effect comprehensive liability insurance. Owners and operators must provide proof of insurance at the time permission to moor in Guest Moorage is obtained or on request from the Harbormaster.

Failure to have comprehensive liability insurance with the limits stated above may be cause for termination of moorage privileges.

ARTICLE VII MARINA FEES AND CHARGES, FAILURE TO PAY, APPLICATION OF LATE FEES, TERMINATION FOR FAILURE TO PAY MOORAGE, AND REINSTATEMENT OF MOORAGE

Section 1: Moorage Rates.

Moorage rates are set by the Board based on recommendations from the Moorage Committee and are available at the HPMA office and on the HPMA website.

Section 2: Marina Fees and Charges are Assessments; May be Collected as Such.

A. Owners shall be financially responsible for the Marina fees and charges they incur, including but not limited to Permanent Moorage Slip lease payments, Guest Moorage Slip per diem fees, administrative fees, electricity, and water. Owners shall also be responsible for damages and costs to the Marina resulting from their actions, and the actions of their Registered Occupants, guests, tenants, agents, contractors, invitees or any other occupant of Owner's Lot, and such damages and costs may be assessed against an Owner upon notice and opportunity to be heard.

B. Fees, costs and any other amounts charged, incurred or assessed in connection with the use of the Marina, including Slip rental for either Permanent Moorage Slips or Guest Moorage Slips, and any costs or attorneys' fees incurred by the Association in collection, are considered Assessments under the Governing Documents and may be collected and enforced as such, including but not limited to imposition of late fees and interest, recording and foreclosure of liens on an Owner's Lot, and a lawsuit seeking a personal judgment.

C. A Lot Owner may not waive or otherwise escape liability for the fees, costs, and other charges for use of the Marina by abandonment of their Permanent Moorage Slip or vessel. An Owner who no longer wishes to pay for a Permanent Moorage Slip should discuss termination of their Long-Term Lease with the Board.

D. HPMA will apply payments to the oldest invoice first. The owner cannot determine which invoice payments are applied to.

Section 3: Failure to Pay.

HPMA shall apply late fees and/or interest on all delinquent fees/assessments, including moorage fees, as defined in the Governing Documents and policies. In addition to the collection rights and remedies of the Association in the Governing Documents, the Association may suspend a delinquent Owner's voting rights and his right to use, enjoy and have the benefit of the Common Area for such period as his delinquency continues. If any Marina fee, cost, charge, or lease payment is delinquent HPMA may take additional actions specific to marina use:

A. For Long Term Leases (Permanent Moorage Slips), if the Long-Term Lessee is delinquent more than 90 days on any HPMA fees/assessments, including their moorage fees, the Owner's vessel shall be removed from the Marina and shall not return until all delinquencies are paid current.

If any Marina fee, cost, charge, or lease payment is delinquent more than 180 days after the due date then, after notice and opportunity to be heard, the subject Long-Term Lease may be cancelled and reassigned by HPMA without recourse, unless payment arrangements, based on hardships, have been approved by the HPMA Board in advance.

B. For Subleases of Permanent Moorage Slips, if the Long-Term Lessee is delinquent more than 60 days on their moorage fees, the Sublet Lease becomes null and void and will be cancelled with no recourse and the vessel shall be removed from the marina.

C. Owners and Registered Occupants who are delinquent more than 60 days for Transient Guest moorage shall not be allowed to use the Marina moorage until the past due

amounts are paid in full. In such an event no reservations may be made.

D. All moored vessels may be impounded per Article VIII if delinquent as defined in A, B or C above, or as may be allowed or required by law or elsewhere in these Rules.

Section 4: Reinstatement of Moorage.

Reinstatement of Moorage. Moorage may be reinstated when past due accounts are paid in full except Long-Term Leases more than 180 days past due that have been cancelled and reassigned by HPMMA.

ARTICLE VIII IMPOUNDING DELINQUENT OR ABANDONED VESSELS

Section 1: Impoundment of Vessel.

Whenever vessel impoundment is authorized under these Rules, or in any other situation where vessel movement or impoundment is necessary and allowed, such as if a vessel is a nuisance, in danger of sinking or creating other damage, the following provisions will apply. The Association will comply with local, state, and federal authorities and requirements as may be applicable. The Marina is a “private moorage facility” and the Association a “private moorage facility operator” as those terms are used under RCW 88.26.010. In addition, public entities may have impoundment or vessel seizure rights applicable to vessels in the Marina.

Section 2. Securing Vessel, Impoundment and Sale for Failure to Pay.

In the event an Owner storing a vessel at the Marina, whether under Long-Term Lease or Sublease, fails to pay any fees/assessments, including moorage fees, as defined in Article VII above, the Association may take reasonable measures to secure the Owner or Sublessee’s vessel pursuant to RCW 88.26.020, subject to its notice and other requirements. The Association may hold and sell the vessel under that statute. A copy of RCW 88.26.020 can be referenced at Appendix 5.

ARTICLE IX MODIFICATION OR ALTERATION OF SLIPS

In general, the modification or alteration of slips is not allowed. The below provisions describe the limited conditions under which a slip may be modified or altered to suit the specific needs of a tenant.

Definitions:

1. **Modification:** The installation of the Long-Term Lessee or Sublessees’ property on the floats, docks, piers, or water space such as cleats, bumpers, dock wheels, marine lifts, hoists, floating docks, etc.
2. **Dock Alteration:** Any change in the structure of the floating docks that involves adding new components to the structure or removing components of the original structure.
3. **Drive-on Floating Docks:** Drive-on, drive-off floating docks (dry docks) moored in the slip for the purpose of keeping the hull of a vessel out of the water when not in use.

4. **Personal Watercraft (PWC):** A vessel propelled by a water-jet pump or other machinery as its primary source of motive power and designed to be operated by a person sitting, standing, or kneeling on the vessel, rather than sitting or standing within the vessel's hull.

Section 1: Modification Generally.

A. Slips may not be modified by the addition of carpet, mats, hoses, electrical cords, storage lockers (dock box), dock wheels, or any item permanently attached to the float, dock, or pier with the following exceptions:

1. Cleats – An additional cleat(s) may be provided and installed by HPMA upon request from the Long-Term Lessee. The Lessee will be billed for the actual cost of the cleat(s) and installation, once installed, the cleat(s) becomes property of the Marina. Requests shall be submitted to the Harbormaster and must be approved by HPMA.
2. Drive-on Floating Docks – for one or two personal watercraft (PWC) may be used in a moorage slip with the approval of HPMA. A request must be submitted by the Long-Term Lessee to the Harbormaster and approved by HPMA prior to arrival. If approved the floating dock shall not be bolted or attached to the marina docks. It must be secured by rope/line to the dock cleats only. The floating dock cannot ground out on low tides and shall not exceed the length and/or beam dimensions as defined by the lease. Drive-on floating docks designed for vessels other than PWC are not permitted.
3. Sublessees that require cleats or drive-on floating docks for PWCs must obtain the approval of their Lessor and HPMA per 1 and 2 above.

B. Slips shall not be altered in any way by the addition of any structural component, including storage shelves, storage devices for dinghies and the like.

C. Slips shall not be altered in any way by the removal of any of the components of the original structure.

D. HPMA reserves the right to deny any request for additional cleats and/or drive-on floating docks.

**ARTICLE X
SAFETY & SECURITY**

The following rules apply to all users of the Marina.

Section 1: Access.

A. Marina users must ensure that emergency access to Marina facilities is always maintained. Roadways, gangways, piers, floats, and finger piers may not be obstructed at any time.

B. Boarding steps shall not occupy more than 1/3 the width of a finger pier or dock.

C. No person shall place or permit to remain on or across any float, any permanent hose, line, or object which would restrict, block, or make hazardous pedestrian use of said float.

D. No unauthorized storage lockers are permitted on floats or finger piers, or anywhere else in the Marina.

Section 2: Bicycles, skateboards, rollerblades/skates, motorcycles.

Bicycles, skateboards, rollerblades, motorcycles and other similar vehicles or devices are prohibited on the docks and gangway.

Section 3: Canoe and Kayak Storage.

Canoe and kayak storage racks at the Marina and other locations are available to Property Owners. Annual permits may be purchased at the HPMA office based on availability.

Section 4: Children on the Docks.

Children 12 and under must be accompanied by a responsible adult while on piers and floats of the Marina.

Section 5: Deposit of Debris on Marina Property.

A. No garbage, trash, oil, fuel, debris or other material, liquid or solid, shall be deposited on the land areas of the Marina, or on any floats, piers, or elsewhere in the moorage area, except into containers provided for that express purpose.

B. No person shall place, put, or in any way deposit any article, substance, or hazardous material on the land areas of the Marina, or on any floats or piers in such position that the same may or can be washed into the Marina waters, either by high tides, storms, flood, or otherwise.

C. No person shall deposit waste matter of a residential or commercial origin in Marina garbage containers. "Waste matter of a residential or commercial origin" as used in this section shall mean material which first becomes waste matter at a residence or commercial establishment and is first gathered for disposal by a resident, owner of such commercial establishment, or an agent of either such resident or owner.

Section 6: Deposit of Material into Marina Waters.

No person shall dump material of any kind into the waters of the Marina, or set adrift, or allow, cause, or permit to go adrift anything, including that which is or might become obstructive or dangerous to navigation, other vessels, or the Marina facilities.

Section 7: Dock Carts.

Dock carts are located at the top of the gangway and are to be used to haul materials and supplies to and from vessels. Please do not leave carts on the dock. Return them to their storage location after each use.

Section 8: Electricity / Shore Power.

Definitions:

A. **Shore power** means the electrical service located in the power pedestal at each slip and includes the tenant's power cord from the pedestal to the vessel.

B. **Dock Side** means the electrical service on the dock located in the power pedestal; the end of the power cord that connects to the pedestal.

C. **Vessel Side** means the electrical service on the vessel (i.e.: shore power inlet); the end of the power cord that connects to the vessel or equipment on the vessel (i.e.: a battery charger).

Section 9: Electricity/ Shore Power – Generally.

Shore power is provided at each Slip for the convenience of the vessel owners. All shore power cords and plugs must be labelled UL approved, be of marine grade, and be in good condition with no signs of corrosion, cuts, discoloration, or abnormal wear.

A. HPMA does not guarantee uninterrupted service or accept responsibility for any damage from electrical connections or electrolysis. Refer to Appendix 4 regarding electrical power for new docks.

B. All dock side plugs will be of a twist lock, marine style connection.

C. Adaptors to a household 2 or 3 prong plug are not allowed at the dock side of the power cord or electrical service. If these adaptors are used, they must be on the vessel side of the power cord only and are to be placed inside the vessel below the height of the gunwales.

1. Exception: Marine grade adapters that lock all cords in place at each end and are designed for dock side application may be used.

D. It is a violation of Marina rules to allow any unsafe electrical situation to exist, which could cause harm to life or property. Report any unsafe electrical situation to the Harbormaster. **Do not attempt to disconnect, touch, "fix" or tamper with the electrical items in question.**

E. Use of another Lessee's or Sublessee's electricity without permission is not permitted.

F. All electrical cords must be properly sized, polarized, and grounded.

G. Power cords may not lay across walkways, be allowed to hang in the water or be stored on any dock.

H. Power cords are not to be left with only one end connected. If the dock side or boat side of the shore power cord is to be disconnected, both sides shall be disconnected.

Section 10: Emergency Equipment.

All Marina fire extinguishers, firefighting equipment, life rings and other emergency equipment are to be used only for the fighting of fires and for appropriate emergency or training situations.

Section 11: Fire Fighting Equipment (on vessel).

All vessels moored in the Marina shall be always equipped with the minimum firefighting equipment, in operable condition, required by the U.S. Coast Guard for a vessel of its particular class.

Section 12: Fires.

Fires of any kind are prohibited on floats, piers, and docks. Barbeques and a fire pit are located next to the Marina picnic shelter and are available on a first come, first serve basis and are subject to any posted fire bans.

Section 13: Fishing and Crabbing.

Fishing and crabbing are allowed on the docks and floats if the fisherman, crabber, and their equipment do not interfere with the operation or maneuverability of any vessel and are properly licensed and follow applicable State fishing regulations.

Section 14: Flammable Liquids Legal.

A. Transferring fuel from one container to another is strictly prohibited on the docks, piers, and floats. Fuel may only be transferred in the vessel as allowed by law.

B. Any person suspecting the dangerous release of flammable liquid or gas, including but not limited to gasoline, white gas, alcohol, propane, paint, solvent, diesel fuel, or kerosene that appears to be creating a spill or risk of explosion shall immediately call the fire department (911), and attempt to notify the Harbormaster, so that appropriate action may be taken.

C. HPMA personnel are empowered to take appropriate action if they suspect that flammable liquids or gas may constitute a hazard, cause property damage, personal injury, or death.

D. Any other action by any person which causes fire, explosion, property damage, personal injury, or death to any person may be subject to civil or criminal penalties.

E. It is incumbent upon the Marina users to act in a reasonable and responsible fashion with regard to all flammable liquids and gases while within the confines of the Marina.

Section 15: Floating Objects.

All vessels, logs, pilings, building materials, kayaks, paddleboards, dinghies, or any other articles of value found adrift in Marina waters may be impounded by the Harbormaster, and may be redeemed by the owner upon payment of related fees or charges associated with the recovery and/or storage of the items.

Section 16: Garbage.

Garbage containers are located by the picnic shelter for Marina users. Household waste and hazardous materials should not be disposed of in these containers. Waste in garbage bags should be deposited in the dumpsters located at the clubhouse parking lot.

Section 17: Harbormaster Access to Vessel.

Lessees, Sublessees, Transient Moorage, or any other user of the Marina implicitly grants the Harbormaster or his/her agent authority and free access to board their vessel while it is in the Marina and to move the vessel as needed to protect the Marina, Marina users, other vessels and equipment and Marina access. However, such authority and free access creates no responsibility or duty on the part of the Harbormaster, HPMA, its directors, officers, or agents, for the vessel, its tackle, apparel, fixtures, equipment and furnishings or any other property of the vessel owner, and the vessel owner and their invitees, guests, family, employees, or agents shall hold the Harbormaster, the HPMA, its directors, officers, and agents harmless.

Section 18: Interference with Marina Activities.

No person shall cause or permit a vessel or other object under his control to unreasonably or unnecessarily interfere with other vessels, with the free and proper navigation of Marina waterways, or with the performance of an activity of HPMA or Harbormaster.

Section 19: Launching and Hauling.

No person shall launch into or remove from the waters of the Marina any vessel other than surfboards, paddleboards, kayaks, canoes, dinghies, or similar small craft that can be manually lifted from the water. There is no boat launch for trailered vessels at the Marina.

Section 20. Lifejackets.

It is recommended that all persons wear a lifejacket while on the docks or around water especially anyone who cannot swim. Lifejackets available for use are located in the storage locker to the left and top of the gangway. Please return lifejackets to the storage locker.

Section 21: Log Breakwater.

Except for HPMA personnel or authorized agents in the performance of their duties, no person shall walk on, over, or across or anchor or moor a vessel on or to the log breakwater outside the Marina harbor.

Section 22: Maneuvering.

HPMA defines all water areas inside of the breakwater of the Marina as "Narrow Channel," under the U.S. Inland Rules of the Road. Consequently, a sailboat or other vessel does not have right-of-way over another vessel based solely on its method of propulsion.

A. Vessels exiting the Marina have the right of way over those entering the Marina due to the tight maneuvering quarters of the Marina entrance fairways.

B. The movement of vessels within the moorage areas (between floats) must be for the purpose of mooring, entering, or leaving a Slip only; random "cruising" within the moorage areas is prohibited.

C. Vessels, vehicles, property, gear, or equipment must be parked, stored, moored, or maneuvered in a safe and orderly manner.

D. No person shall fail to yield the right of way to the operator of a towboat or other vessel in accordance with the rules of the road.

Section 23: Noise Complaints.

Sound levels, including vocal sounds, pet noises, boat noises, horns, radios, televisions, stereo equipment, and similar sound devices shall be always kept at reasonable decibel levels. Refer to HPMA Rules & Regulations, Article VIII, Facilities/Amenities Rules and Article IX, *Personal Conduct* Article X – Pet Ownership and Control, Section 6B for definition of excessive pet noise

Section 24: Nuisance Abatement.

A. Nuisance Personal Conduct: A condition aboard or around a vessel that-unreasonably interferes with another's enjoyment of the Marina facilities per the HPMA Rules & Regulations, Article IX Personal Conduct shall be corrected upon receipt of notice by the Harbormaster, Patrol or HPMA Management, thereof by the owner or operator.

B. Dangerous Conditions: In exigent circumstances that presents a danger to public safety, corrective action may be taken by the Harbormaster, including but not limited to correcting the condition, or charging the costs of abatement to the next billing (or impounding the vessel, if the condition qualifies as such as a nuisance), in danger of sinking or creating other damage, pursuant to the provisions of these Rules if the nuisance or hazardous/dangerous condition is not abated by the vessel owner. The Association reserves all remedies and rights to act in the event of circumstances described above, including but not limited to imposition of fines, termination of the Long-Term Lease, Sublease or Transient Moorage usage

Section 25: Obstructions and Hazards on Docks and Piers.

Vessel owners, operators, crew, or guests using the Marina are required to keep their vessel, gear locker, and the pier or finger pier in the vicinity of their vessel neat, clean, orderly, and shipshape.

Section 26: Oil and Petroleum Products in the Marina Waters.

No person in, on or about the Marina shall spill, throw, pump, or otherwise cause oil, gasoline, diesel oil, sewage, or any other pollution, as that term is defined in RCW 90.48.020, to be upon Marina waters in violation of State or Federal regulations. Violations may be reported, processed and subject to penalties and liability as provided in RCW 90.48 or any other laws that may apply to such circumstances.

Section 27: Pets.

All pets must be on a leash or contained in a carrier when using the Marina. Pet owners must clean up after their pets. See HPMA Rules and Regulations, Article X, *Pet Ownership and Control*.

Section 28: Repair Work.

Extensive repair work on a vessel is not allowed while the vessel is located within the Marina, except under emergent and exigent circumstances. The Harbormaster retains discretion to determine whether a vessel may be repaired in the Marina.

Section 29: Required Equipment.

All vessels shall be numbered or documented in accordance with applicable Coast Guard or state regulations and shall carry the equipment required by applicable United States Law in force on the effective date of this Rule, or as may be required at any time while using the Marina.

Section 30: Security – Video Camera.

Video cameras are operated by HPMA to deter security concerns. However, video cameras are not actively monitored and may not be always operational. To enhance Marina security, Marina users are encouraged to report suspicious behavior to the Harbormaster, Patrol Offices, HPMA office and/or appropriate law enforcement officials.

Section 31: Sewage Disposal.

The marine sanitation device standards and requirements of 33 CFR 159 is adopted by reference and shall be enforced in the Marina.

Discharge of sewage, chemicals, or any other substance from vessels while in the Marina area is prohibited. Also, refer to Section 26, above.

Section 32: Speed Regulation.

The entire Marina is a no wake zone with a speed limit of four knots / 4.6 miles per hour. Operating any vessel in excess of this speed, or at a speed too fast for conditions, is prohibited.

Section 33: Spill Prevention and Response.

Should a spill occur on or from your vessel while in the Marina, immediately stop the source of the spill and contain all contaminants with absorbent materials.

1. A Spill Response Kit is located at the top of the gangway by the life jacket stand.
2. Used absorbent materials should be wrapped in newspaper and plastic and disposed of in the garbage containers.
3. Report all spills immediately as described in Spill Action Plan located in the Spill Kit.
4. Report the spill immediately to:
 - a. WA Emergency Management Division 1.800.258.5990
 - b. The National Response Center 1.800.424.8802
5. Report the spill to the Harbormaster
6. HPMA will purchase spill containment material as needed to replenish stock and invoice the lessee responsible for the spill.

Section 34: Swimming, Diving & Scuba Diving.

Recreational swimming, diving and Scuba is prohibited in the Marina. Exception: Swimming or diving for rescue purposes, or for vessel, dock or breakwater maintenance is permitted.

ARTICLE XI
ADOPTION OF BEST MANAGEMENT PRACTICES (BMPS)
FOR COMPLYING WITH WATER QUALITY LAWS, ELECTRICAL CODES AND OTHER MATTERS RELATED TO
SAFE MOORAGE

Foreword

The Marina is obligated to obey and enforce all applicable State and Federal environmental laws. Beyond that obligation, HPMA also believes that it is in the best interest of the boaters and other users of the Marina if the waters of the Marina meet the safety and health standards set forth in State and Federal regulations. Activities associated with cleaning and maintaining a vessel and disposing of sewage and gray water that result from using a vessel can impact water quality in the Marina. These activities are a necessary part of owning and using a boat, therefore, HPMA feels the best way to protect water quality is for tenants and users of the Marina to be aware of and adhere to the following Best Management Practices (BMPs). These will enable the tenants to accomplish cleaning and maintenance activities without reducing water quality. The BMPs set forth the necessary requirements, but they also provide alternative methods for regulated activities.

What are Best Management Practices?

Best Management Practices are low technology ways to protect the environment. In general, BMP's are pollution control activities designed to protect or reduce the discharge of pollutants into the waters of the Marina. The key to successful BMPs is to incorporate them into routine activities. BMPs fall into two categories: source control and treatment. Source control BMPs are measures which prevent pollutants from entering the water. Source control BMPs rely heavily on the diligence and commitment of operators and boaters in following management practices. Treatment BMPs are measures that reduce the toxicity or volume of a waste after it has been generated. In general, most treatment BMPs are more expensive and labor intensive than source control measures.

The BMP's in this Chapter address cleaning and maintaining boats, hazardous materials, gray water, and sewage.

Section 1: Adoption of BMP's.

The Indian Cove Marina Handbook of Best Management Practices (BMPs), included herein as Article XI is hereby adopted, along with all subsequent amendments, additions, or deletions. Copies of the Best Management Practices shall be available at the HPMA office.

Section 2: Applicable Laws and Policies.

Applicable laws and policies include, but are not limited to:

Federal:

The Clean Water Act of 1977

The Clean Water Act prohibits the discharge of untreated sewage wastes into any U.S. territorial water and within three miles of shore.

Washington State:

Water Pollution Control Act

Chapter 90.48.080 RCW

“It shall be unlawful for any person to throw, drain, run, or otherwise discharge into any of the waters of this state, or to cause, permit or suffer to be thrown, run, drained, allowed to seep or otherwise discharged into such waters any organic or inorganic matter that shall cause or tend to cause pollution of such waters according to the determination of the department, as provided for in this chapter.”

Section 3: Sewage, Discharge.

Discharge of sewage from vessels while in the Marina area is prohibited. A sewage pumping station is located at Jarrell’s Cove State Park located 1.5 miles south of our Marina.

Section 4: Vessel Maintenance.

All boats require cleaning and some type of maintenance. The Best Management Practices for cleaning and maintaining your boat are all designed to keep toxic substances out of the water. With a few exceptions, most work can be safely performed if precautions are taken to minimize the impact on the marine environment.

Section 5: Best Management Practices for Cleaning your Boat.

Any cleaning done to the exterior of a boat usually involves rinsing the dirt and the cleaning agent off into the water. Because containment is not practical, the best management practice for cleaning the exterior is to use cleaning products that minimize impacts on water quality. Often, products we assume are safe are very toxic to the marine environment. Grease cutting detergents, scouring powders and bleach are examples of cleaners that should not be used in situations where they will be rinsed off into the waters of the Marina. Cleaners that are labeled phosphate-free and non-toxic are preferable.

If you use cleaners on the interior of your boat that are not safe if introduced to the water, then be sure such cleaners do not end up in the bilge where they will be pumped into the water. Pumping bilge water containing any petroleum product, degreasers, or soaps into the waters of the Marina is strictly prohibited.

Section 6: Best Management Practices for Vessel Maintenance.

Painting, scraping, and refinishing of boats, when in the water, is limited to minor touch ups that do not introduce prohibited substances into the water. All work must be contained! The Washington Department of Ecology requires that slip side maintenance be limited to projects of less than 25% of the surface area of the hull above the waterline in any calendar year. More extensive work is required by law to be performed in a permitted boatyard facility.

The following practices apply to minor repairs and maintenance, (less than 25% of the above water surface area of the hull).

1. For any size project, all the by-products of scraping, sanding, and refinishing must be kept out of the water.
2. Any sanding must be done with a vacuum sander or with containment in place.
3. All paint mixing must be done with the can(s) placed inside of an acceptable form of secondary containment that will catch any spillage. Paint containers in the moorage area are limited to one, (1) gallon in size.

4. Used paint and other hazardous wastes are to be taken to appropriate hazardous waste storage areas for disposal. These materials are not to be discharged into the water, the sanitary sewer, or a garbage container.

The Harbormaster shall have the sole discretion to decide what projects may be done in the water. Violation of any applicable Federal, State, County law or Marina Rule may be grounds for HPMA enforcement or referral to an appropriate agency. Any project involving more than 25% of the surface area of a vessel (above the water line) within the calendar year must be done out of the Marina.

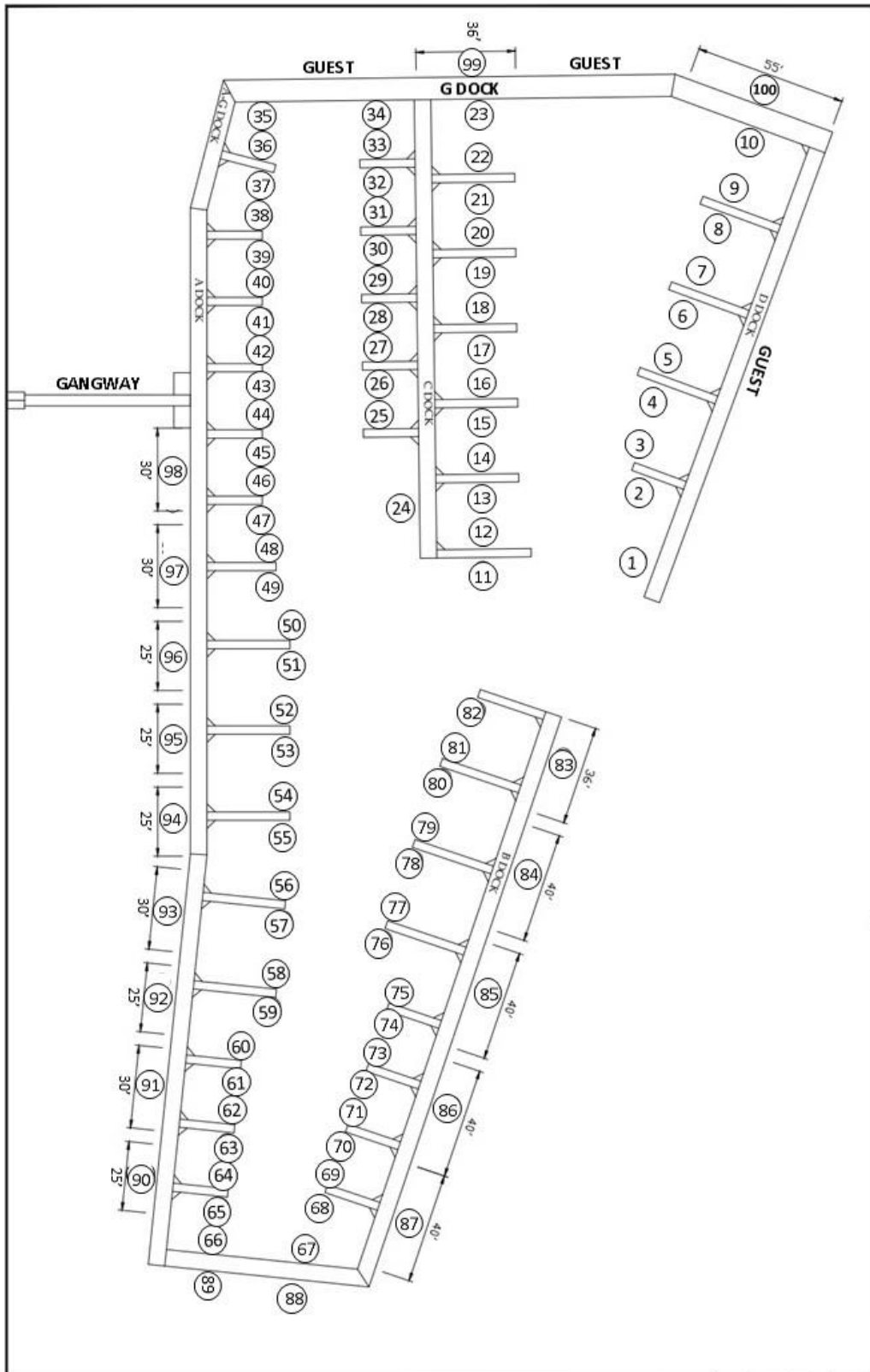
Section 7. Marina Electrical Safety

To promote personal safety and reduce the risk of fire, the Marina hereby adopts the Best Management Practices for Marina Electrical Safety; Association of Marina Industries, current edition, as part of the Marina Rules. Marina users are encouraged to read the Best Management Practices, available online.

TABLE OF FINES:

VIOLATION	PENALTY
Moorage Violations: • Violation of Marina Rules, terms of Long-Term Leases, Subleases or Transient Moorage leases or usage. Repeated non-compliance of Marina Rules or Long-Term Lease or Sublease terms may result in termination of such leases.	1st violation: \$50 2nd and additional violations of the same or similar rule in any 6 month period: \$100 If violations are not corrected within 15 days a \$20 Fine Per Day Until Corrected

Appendix 1 – Marina Layout

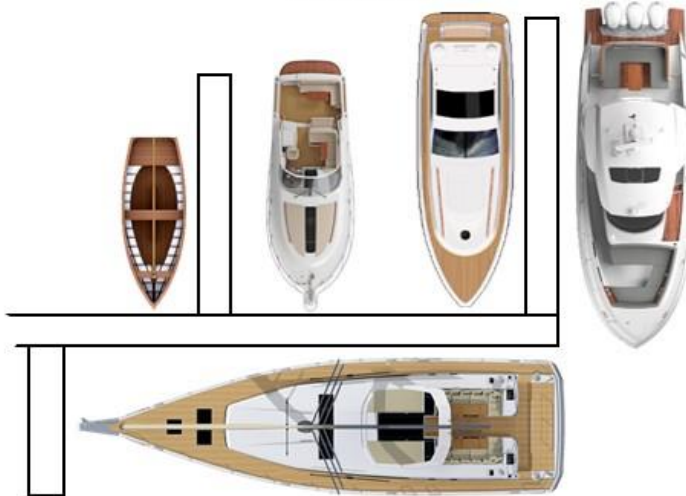


Appendix 2 – Example of Bow-In and Side Tie Moorage

Example of Bow-In and Side Tie Moorage

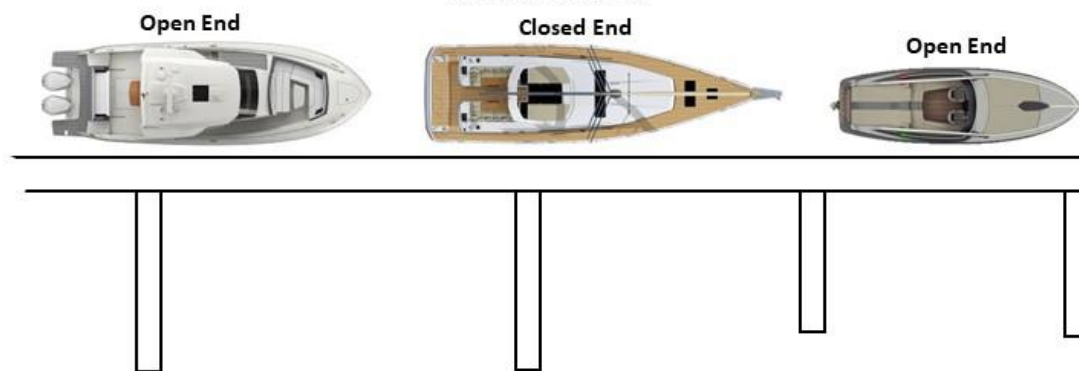
Bow In Slips: The overall length of the vessel cannot exceed the length of the slip plus two feet into the fairway. No portion of the vessel, equipment or hardware can extend over or onto the dock.

Example of Bow-In



Side Tie Slips: The overall length of the vessel cannot exceed the length of the slip plus two feet. Extra length may be allocated by HPMA on the closed-end side to provide maneuvering space, primarily for the vessel utilizing the Closed-End Side Tie. It is the Lessee/Sublessee's sole responsibility to safely maneuver with the space provided.

Example of Side Tie

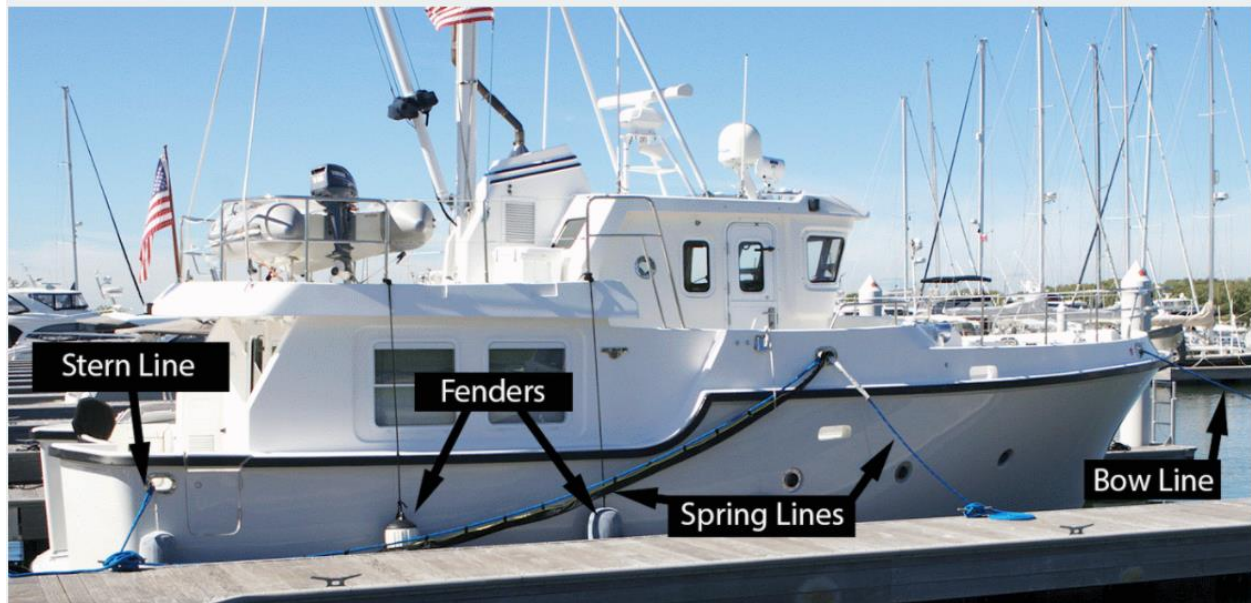


Specific to Indian Cove Marina, Side Tie Slips are defined as the slips located along the outside perimeter of the marina with vessels moored on both the stern and bow ends of the vessel in the respective mooring slip.

Appendix 3 - Best Practices for tying up a Vessel

From Boats.com:

Aside from knowing how to safely run a boat out on the water, being able to securely moor it is one of the most important skills a boater can possess. Yet it's something that's frequently done very poorly—and even by boaters with lots of experience. While it may not seem like a big deal, there are plenty of instances where a bad mooring job causes major damage not only to the boat, but also to other boats around it.

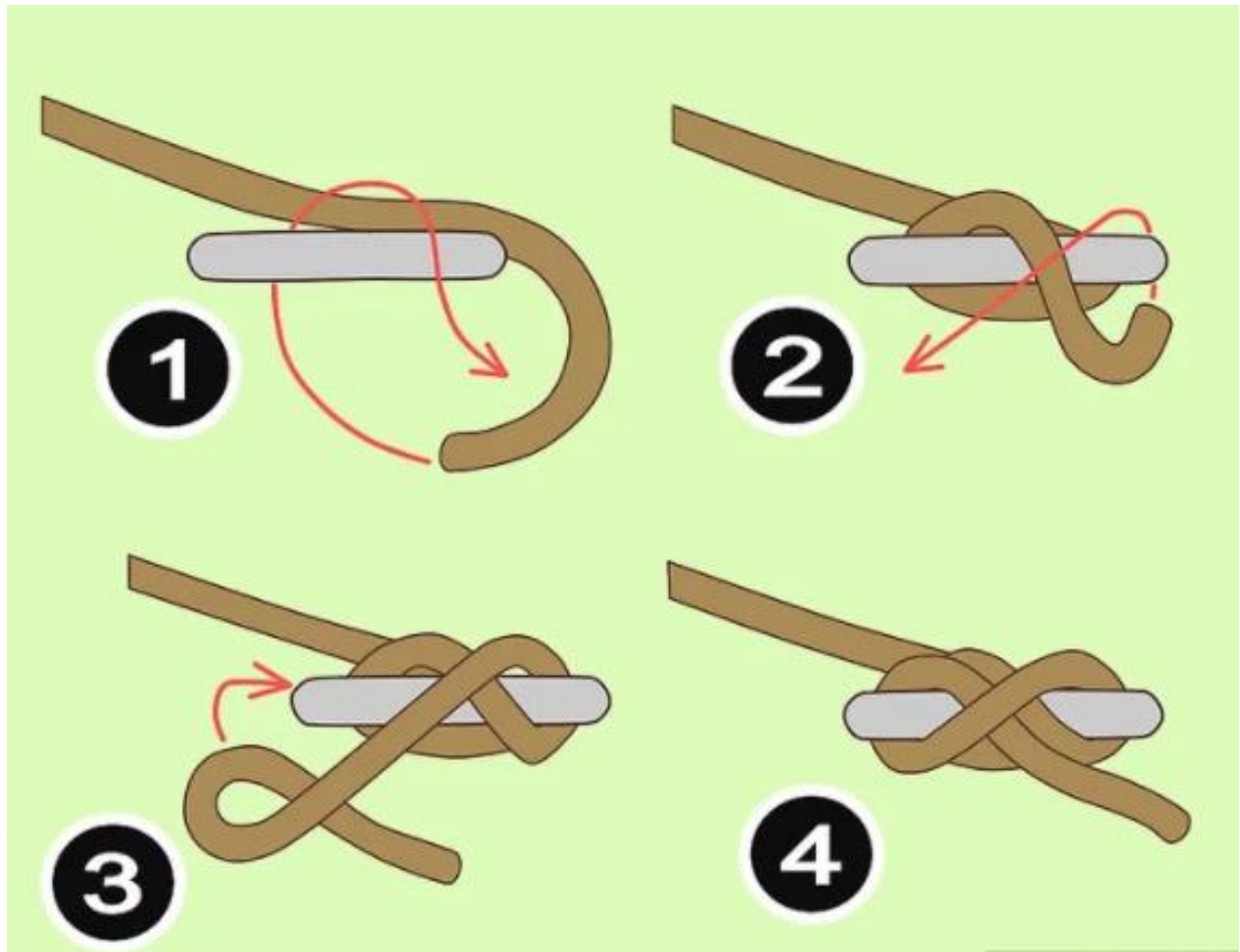


LINES

- **Bow Lines:** Bow lines stop the bow of a boat from moving side to side. A bow line also keeps a boat from drifting away when tied alongside, such as when you're tied off to a bulkhead or pier.
- **Breast Lines:** Breast lines are used to keep a boat from moving away from a pier, or to make it easier when pulling the boat closer for easier boarding.
- **Spring Lines:** Spring lines keep a boat from moving forward or aft. Generally, only two of these lines are required, but as many as four are sometimes used, depending on the situation.
- **Stern Lines:** Stern lines prevent the stern of a boat from moving side to side or, when tying up alongside a bulkhead or pier, a stern line keeps a boat from drifting away from the dock.

From Wiki How:

Use a complex cleat knot for a secure tie. A complex cleat knot is another option if you want to really secure the dock lines, though it will take more time than a simple cleat knot. Start by looping the line once around the bottom of the cleat. Then, slide the line over the top of the cleat and wrap it around the opposite side of the cleat. Raise it over the top of the cleat and loop it under the first arm to form a figure 8 shape. Make a small, underhand loop and place it over the first arm. Tug the end of the rope to secure the knot.



Appendix 4 – Information About Circuit Breakers on Our Docks

The Marina has updated shore power connections. All slips have access to a shore power pedestal (20 amps for 20 foot slips and 30 amps for all other slips). The shore power system includes two different breakers used to measure potential electrical leakage by monitoring the flow of electricity into and out of a circuit. The system has pedestal circuit breakers that trip if there is a loss of 30 or more milliamps at an outlet. In addition, there are centralized circuit breakers for pedestal groupings that trip if there is a loss of 100 or more milliamps. The National Electrical Code standard determined the breaker shut-off levels to help prevent electrical shock drownings.

If your shore power outlet keeps shutting off when you try to connect your power, you can reset the breaker once or twice but if you are not successful you need to stop and have your boat evaluated. The breaker protecting your outlet is detecting leakage from your vessel (unless you are overdrawing the circuit). You will not be able to successfully connect to the outlet and get power until the leakage is found and corrected, or at least isolated. Be aware the issue affecting your boat may also affect other boats in the marina if you end up tripping a centralized circuit breaker. You need to immediately contact the harbormaster should one of the centralized circuit breakers trip.

Appendix 5: RCW 88.26.020

Securing vessels—Notice—Moving vessels ashore—Regaining possession—Abandoned vessels—Public sale.

(1) Any private moorage facility operator may take reasonable measures, including the use of chains, ropes, and locks, or removal from the water, to secure vessels within the private moorage facility so that the vessels are in the possession and control of the operator and cannot be removed from the facility. These procedures may be used if an owner mooring or storing a vessel at the facility fails, after being notified that charges are owing and of the owner's right to commence legal proceedings to contest that such charges are owing, to pay charges owed or to commence legal proceedings. Notification shall be by two separate letters, one sent by first-class mail and one sent by registered mail to the owner and any lienholder of record at the last known address. In the case of a transient vessel, or where no address was furnished by the owner, the operator need not give notice prior to securing the vessel. At the time of securing the vessel, an operator shall attach to the vessel a readily visible notice. The notice shall be of a reasonable size and shall contain the following information:

- (a) The date and time the notice was attached;
- (b) A statement that if the account is not paid in full within ninety days from the time the notice is attached the vessel may be sold at public auction to satisfy the charges; and
- (c) The address and telephone number where additional information may be obtained concerning release of the vessel.

After a vessel is secured, the operator shall make a reasonable effort to notify the owner and any lienholder of record by registered mail in order to give the owner the information contained in the notice.

(2) A private moorage facility operator, at his or her discretion, may move moored vessels ashore for storage within properties under the operator's control or for storage with a private person under their control as bailees of the private moorage facility, if the vessel is, in the opinion of the operator, a nuisance, in danger of sinking or creating other damage, or is owing charges. The costs of any such procedure shall be paid by the vessel's owner.

(3) If a vessel is secured under subsection (1) of this section or moved ashore under subsection (2) of this section, the owner who is obligated to the private operator for charges may regain possession of the vessel by:

(a) Making arrangements satisfactory with the operator for the immediate removal of the vessel from the facility or for authorized moorage; and

(b) Making payment to the operator of all charges, or by posting with the operator a sufficient cash bond or other acceptable security, to be held in trust by the operator pending written agreement of the parties with respect to payment by the vessel owner of the amount owing, or pending resolution of the matter of the charges in a civil action in a court of competent jurisdiction. After entry of judgment, including any appeals, in a court of competent jurisdiction, or after the parties reach agreement with respect to payment, the trust shall terminate and the operator shall receive so much of the bond or other security as agreed, or as is necessary, to satisfy any judgment, costs, and interest as may be awarded to the operator. The balance shall be refunded immediately to the owner at the last known address.

(4) If a vessel has been secured by the operator under subsection (1) of this section and is not released to the owner under the bonding provisions of this section within ninety days after notifying or attempting to notify the owner under subsection (1) of this section, the vessel is conclusively presumed to have been abandoned by the owner.

(5) If a vessel moored or stored at a private moorage facility is abandoned, the operator may authorize the public sale of the vessel by authorized personnel, consistent with this section, to the highest and best bidder for cash as follows:

(a) Before the vessel is sold, the vessel owner and any lienholder of record shall be given at least twenty days' notice of the sale in the manner set forth in subsection (1) of this section if the name and address of the owner is known. The notice shall contain the time and place of the sale, a reasonable description of the vessel to be sold, and the amount of charges owed with respect to the vessel. The notice of sale shall be published at least once, more than ten but not more than twenty days before the sale, in a newspaper of general circulation in the county in which the facility is located. This notice shall include the name of the vessel, if any, the last known owner and address, and a reasonable description of the vessel to be sold. The operator may bid all or part of its charges at the sale and may become a purchaser at the sale.

(b) Before the vessel is sold, any person seeking to redeem an impounded vessel under this section may commence a lawsuit in the superior court for the county in which the vessel was impounded to contest the validity of the impoundment or the amount of charges owing. This lawsuit must be commenced within sixty days of the date the notification was provided under subsection (1) of this section, or the right to a hearing is deemed waived and the owner is liable for any charges owing the operator. In the event of litigation, the prevailing party is entitled to reasonable attorneys' fees and costs.

(c) The proceeds of a sale under this section shall be applied first to the payment of any liens superior to the claim for charges, then to payment of the charges, then to satisfy any other liens on the vessel in the order of their priority. The balance, if any, shall be paid to the owner. If the owner cannot in the exercise of due diligence be located by the operator within one year of the date of the sale, the excess funds from the sale shall revert to the department of revenue under chapter [63.29](#) RCW. If the sale is for a sum less than the applicable charges, the operator is entitled to assert a claim for deficiency, however, the deficiency judgment shall not exceed the moorage fees owed for the previous six-month period.

(d) In the event no one purchases the vessel at a sale, or a vessel is not removed from the premises or other arrangements are not made within ten days of sale, title to the vessel will revert to the operator.

(e) Either a minimum bid may be established or a letter of credit may be required from the buyer, or both, to discourage the future abandonment of the vessel.

(6) The rights granted to a private moorage facility operator under this section are in addition to any other legal rights an operator may have to hold and sell a vessel and in no manner does this section alter those rights, or affect the priority of other liens on a vessel.